

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ANITA YUAN YUN HUANG,

Petitioner

VS.

WEN HUA YANG,

Respondent

) Case Number: FDI-16-786194

) Hearing Date: August 20, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER : CHANGE OF MODIFY DISTRIBUTION OF COMMUNITY PROPERTY

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Anita Yuan Yun Huang and Respondent Wen Hua Yang.
- 2) On 2/15/24, the Court issued a Final Statement of Decision, which includes disposition of the jointly owned condominium located at 110 Otter Cove Terrace in San Francisco CA. The Court ordered, in pertinent part: "The condominium is assigned to Petitioner, with an equalizing payment owed by Petitioner to Respondent in the amount of \$366,000. Petitioner shall have until August 31, 2024 to arrange the financing necessary to purchase Respondent's community property share of the condominium. If she is unable to do so by that date, the condominium shall be sold, and the net proceeds split evenly between the parties after the payment of commissions, fees, taxes, and other closing costs. In the event the condominium is to be sold, Petitioner shall provide Respondent with the names of three proposed local real estate agents to act as the listing agent no later than September 21, 2024." See Final Statement of Decision and Order filed 2/15/24.

- 3) On 4/10/26, the Court entered Judgment incorporating the Final Statement of Decision filed 2/15/24.
- 4) At the prior 4/16/26 hearing, the Court denied Petitioner's Request for Order filed 3/16/26 seeking modification of the Court's Final Statement of Decision filed 2/14/24; and (b) Petitioner's Request for Order filed 3/16/26 seeking a stay of the instant proceedings pending resolution of a civil case Petitioner filed in San Mateo County. The Court determined no legal basis exists under the Family Code to modify the Court's Final Statement of Decision filed 2/15/24 or stay these proceedings. See Findings and Order After Hearing filed 5/1/26.
- 5) On 7/7/26, Petitioner filed an ex parte Request for Order seeking to vacate the Judgment entered 4/10/26 under Code of Civil Procedure section 473(b). Petitioner asserts that the Judgment should be set aside based on mistake, surprise, and excusable neglect because the Final Statement of Decision filed 2/15/24 failed to reference community debt owed on the condominium and Respondent failed to disclose community debt at trial.
- 6) On 7/7/26, the Court denied Petitioner's request for emergency relief and set the matter for regular hearing on 8/20/26.
- 7) Respondent did not file a Responsive Declaration.

B. Findings and Order

- 1) Code of Civil Procedure section 473(b) provides in relevant part: "The Court may, upon any terms as may be just, relieve a party...from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief...shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or other proceeding was taken."
- 2) As a preliminary issue, Court finds Petitioner's 7/7/26 Request for Order seeking to vacate Judgment entered 4/10/26 is timely.
- 3) In proceeding to the merits of Petitioner's 7/7/26 Request for Order seeking to vacate Judgment entered 4/10/26, the Court finds good cause to order as follows:
- 8) Petitioner's 7/7/26 Request for Order seeking to vacate Judgment entered 4/10/26 is brought based on mistake, surprise, and excusable neglect. Petitioner alleges the Final Statement of Decision filed 2/15/24 failed to reference community debt owed on the condominium and

Respondent failed to disclose community debt at trial. Petitioner references both expenses paid on the condominium and the sale of a truck used in the family business.

- 4) The Court's Statement of Decision filed 2/15/24 (which is incorporated in the Judgment entered 4/10/26), directly contradicts Petitioner's assertions. First, it explicitly addresses Watts charges and Epstein credits regarding disposition of the condominium, including evidence presented at trial of Petitioner paying the following community expenses: mortgage payments, property taxes, HOA dues, maintenance costs, and homeowner's insurance. The Court concluded that (a) Petitioner's obligation to compensate the community for her exclusive occupation and use of the condominium is completely offset by her use of the separate property funds to pay the community debts and obligations listed; and (b) the amounts she paid equaled the reasonable value of her use of the condominium (see pages 15 – 17). The Court also adjudicated Petitioner's claim to funds used to purchase trucks used in the family business, concluding her claims failed (see pages 6-7).
- 5) As such, Petitioner's request to vacate the Judgment entered 4/10/26 under Code of Civil Procedure section 473(b) is DENIED.
- 6) Moreover, the Court finds that the relief Petitioner ultimately seeks is, in effect, modification of the Final Statement of Decision filed 2/15/24 for which the Court determined there was no legal basis at the prior 4/16/26 hearing. See Findings and Order After Hearing filed 5/1/26.
- 7) The Court will prepare the Findings and Order After Hearing.